

7	22-01263671 <i>Chavez vs. Prime Construction Group Inc.</i>	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record 3) Motion to Be Relieved as Counsel of Record 4) Motion to Be Relieved as Counsel of Record 5) Motion to Be Relieved as Counsel of Record The motions of attorney Ryan W. Streckfus to be relieved as counsel for defendants (1) Prime Construction Group Inc., (2) Joe Manoukian, (3) JM Flooring Concepts, (4) JR & Flooring, Inc., and (5) JR & J Flooring, Inc. are GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for clients effective upon filing of a proof of service of the signed order on clients. Moving attorney is to give notice of ruling which includes notice to corporate Defendants that corporations must be represented by counsel.
8	24-01368146 <i>Garcia vs. General Motors LLC</i>	Motion for Attorney Fees Plaintiff Walter Garcia's Motion for Attorney Fees is DENIED. The Court intends to enter an order of dismissal at the hearing. The Court has observed a trend in lemon law cases, nearly all of which settle before trial, which is absent from other civil litigation. The plaintiff files a notice of settlement of the entire case without disclosing to the Court any terms other than whether the settlement is unconditional or conditional, and then fails to follow through with filing of a request for dismissal, later filing a motion for attorney fees on grounds the parties agreed the Court would decide the issue of attorney fees and costs as part of their purported settlement. Under the facts of this case, this approach has no basis in law. "If an entire case is settled or otherwise disposed of, each plaintiff or other party seeking affirmative relief must immediately file written notice of the settlement or other disposition with the court" (Cal. Rules of Court, rule 3.1385(a)(1).) "Except as provided in (c) [conditional settlement] or (d) [compromise of claims of a minor or disabled person], each plaintiff or other party seeking affirmative relief must serve and file a request for dismissal of the entire case within 45 days after the date of settlement of the case. If the plaintiff or other party required to serve and file the request for dismissal does not do so, the court must dismiss the entire case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed." (Cal. Rules of Court, rule 3.1385(b).) "If the settlement agreement conditions dismissal of the entire case on the satisfactory completion of specified terms that are not to be performed within 45 days of the settlement, including payment in installment payments, the notice of conditional settlement served and filed by each plaintiff or other party seeking affirmative relief must specify the date by which the dismissal is to be filed." (Cal. Rules of Court, rule 3.1385(c)(1).) "If the plaintiff or other party required to serve and file a request for dismissal within 45 days after the dismissal date specified in the notice does not do so, the court must dismiss the entire